represented ‘the nearest thing to turning over the state to the communists’.[12] He was convinced that the ministers of communication and education in Abdullah’s cabinet were communists. Meanwhile, the British Government sent to Washington Grafftey-Smith’s report on Kashmir impairing the ‘buttress against communism’ in south Asia.[13]

Simultaneously, Henderson’s military attaché too submitted a memorandum reiterating the usefulness of air bases in Kashmir.[14] Senior British and American military men in the Middle East were arguing that ‘political and military considerations could not be separated in Kashmir’.[15]

Earlier, the constituent assembly in India was drafting the Constitution of India, under the leadership of Dr Babasaheb Ambedkar, known in the annals of history as the father of the Indian Constitution. The Indian Constitution, as it finally emerged in January 1950 from the constituent assembly (in which the state of Jammu and Kashmir was allocated four seats, just as it was in due course to have four seats in the Lok Sabha), gave to Jammu and Kashmir what can only be described as a peculiar position, which was unique among Indian states. While the state was deemed in Article 1 to be an integral part of the Indian Union, it was given, by Article 370, a special status by means of ‘temporary provisions with respect to the state of Jammu and Kashmir’ which effectively limited the powers of the Indian Union Parliament there to the three ‘matters specified in the Instrument of Accession governing the accession of the State to the Dominion of India’, namely defence, external affairs and communications, and all this was to be confirmed in Article 152 of the 1956 amended version of the constitution where, in the section dealing with Indian states, it was specified that the expression ‘State’ ‘does not include the state of Jammu and Kashmir’. Apart from the three powers reserved to the Centre, everything else would be the concern of whatever form of government the Jammu and Kashmir Constituent Assembly might decide to create. Article 370 (originally 306-A) was drafted by Gopalaswami Ayyangar in close consultation with Sheikh Abdullah.